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Case Number: 24PSCV02112 Hearing Date: August 4, 2026 Dept: 6

CASE

NAME: Patrick

Murphy v. Timothy Murphy, et al.

1. Plaintiff's

Motion to Compel Defendant's, Timothy Murphy, Further Second Responses to Form Interrogatories – General, Set One;

2. Plaintiff's

Motion to Compel Defendant's, Thomas Murphy, Further Second Responses to Form Interrogatories – General, Set One; and

3. Plaintiff's

Motion to Compel Defendant's, Corinne Murphy, Further Second Responses to Form Interrogatories – General, Set One

TENTATIVE

RULING

The Court GRANTS, in part, Plaintiff's Motion to Compel Defendant Timothy Murphy's Further Second Responses to Form Interrogatories – General, Set One. Timothy must provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court DENIES Plaintiff's motion as to Form Interrogatory Numbers 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6. The Court GRANTS Plaintiff's request for monetary sanctions in the amount of \$650.00. Timothy and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Defendant Thomas Murphy's Further Second Responses to Form Interrogatories – General, Set One. Thomas must provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$650.00. Thomas and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Defendant Corinne Murphy's Further Second Responses to Form Interrogatories – General, Set One. Corinne must provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$650.00. Corinne and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an elder abuse case. On July 2, 2024, plaintiff Patrick Murphy (Plaintiff) filed this action against defendants Timothy Murphy (Timothy), Corinne Murphy (Corinne), Thomas Murphy (Thomas), Terrence Murphy (Terrence)[1] (collectively, Defendants) and Does 1 to 20, alleging causes of action for fraud, aiding and abetting fraud, elder abuse financial, conversion, aiding and abetting conversion.

On May 15, 2026, Plaintiff filed motions to compel further responses from Defendants Timothy, Thomas, and Corinne. The motions are unopposed.

LEGAL STANDARD

Interrogatories

Code of Civil Procedure section 2030.300, subdivision (a), provides that on receipt of responses to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a).)

Code of Civil Procedure section 2030.300, subdivision (d), further provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

DISCUSSION

Meet and Confer

The Court finds the parties’ efforts to meet and confer sufficient. (Minute Order (6/16/26); Code Civ. Proc., § 2030.300, subd. (b)(1).)

Summary of Arguments

Plaintiff

seeks to compel further responses to Form Interrogatories – General, Set One,

from Defendants

Timothy, Thomas, and Corinne. More specifically, Plaintiff seeks further responses from Defendant Timothy as to Form Interrogatory Numbers 15.1, 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6. Plaintiff seeks further responses from Defendants Thomas and Corinne only as to Form Interrogatory Number 15.1. Plaintiff contends these Defendants' responses are deficient because they rely on a cross-reference to a pleading in lieu of a substantive discovery response. Plaintiff contends these Defendants asserted 18 separate affirmative defenses and that they asserted nonresponsive and evasive responses. Plaintiff also contends that Defendant Timothy's responses to Form Interrogatory Numbers 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6 should provide complete and straightforward facts supporting Timothy's contentions and affirmative defenses regarding the alleged agreement.

Analysis

The

Court finds Plaintiff's motions well taken as to Form Interrogatory Number 15.1. The responses of Timothy, Thomas, and Corinne to their respective Form Interrogatories contain boilerplate objections and evasive responses devoid of substance, referencing only their respective Answers to the Complaint. (Code Civ. Proc., § 2030.300, subd. (a); see generally, Separate Statements.) Moreover, these Defendants agreed at the Informal Discovery Conference on June 16, 2026, that they would provide further responses to Form Interrogatory 15.1 by June 22, 2026, and to further meet and confer regarding any other outstanding issues. (Minute Order (6/16/26).)[2] Furthermore, the Court construes Timothy, Thomas, and Corinne's lack of oppositions as a concession that Plaintiff's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

However, the motion is not persuasive as to Form Interrogatory Numbers 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6. Interrogatory 50.1 asks the responding party to provide specific information for each agreement alleged in the pleading, e.g. (a) identify each document that is part of the agreement. Interrogatory 50.2 asks was there a breach of any agreement alleged in the pleadings. Interrogatory 50.3 asks was performance of any agreement alleged in the pleadings excused. Interrogatory 50.4 asks was any agreement alleged in the

pleadings terminated by mutual agreement, release, accord and satisfaction, or novation. Interrogatory 50.5 asks is any agreement alleged in the pleadings unenforceable. Interrogatory 50.6 asks if any agreement alleged in the pleadings ambiguous. To each of these interrogatories, Defendant Timothy responded that there was no agreement made. This is a sufficient response to each of these interrogatories and there is nothing more to compel.

Based on the foregoing, the Court GRANTS Plaintiff's motions as to Form Interrogatory Number 15.1. Defendants Timothy, Thomas and Corrine must each provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court DENIES Plaintiff's motion directed to Defendant Timothy as to Form Interrogatory Nos. 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

The Court further GRANTS Plaintiff's requests for monetary sanctions in the amount of \$650.00 per motion, comprised of 1.5 hours preparing the motion at the hourly rate of \$250.00 for a subtotal of \$375.00 plus 0.5 hours appearing at the hearing for each motion multiplied by the hourly rate of \$550.00 for a subtotal of \$275.00. Timothy and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order. Thomas and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order. Corinne and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

CONCLUSION

The Court GRANTS, in part, Plaintiff's Motion to Compel Defendant Timothy Murphy's Further Second Responses to Form Interrogatories – General, Set One. Timothy must provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court DENIES Plaintiff's motion as to Form Interrogatory Numbers 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6. The Court GRANTS Plaintiff's request for monetary sanctions in the amount of \$650.00. Timothy and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Defendant Thomas

Murphy's Further Second Responses to Form Interrogatories – General, Set One.
Thomas must provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$650.00. Thomas and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

The Court GRANTS Plaintiff's Motion to Compel Defendant Corinne Murphy's Further Second Responses to Form Interrogatories – General, Set One.
Corinne must provide verified and complete further code-compliant responses without objection to Form Interrogatory Number 15.1 to Plaintiff's counsel within 20 days of the Court's order. The Court further GRANTS Plaintiff's request for monetary sanctions in the amount of \$650.00. Corinne and Defendants' counsel of record must pay said monetary sanctions to Plaintiff's counsel within 20 calendar days of the Court's order.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court refers to Defendants by their first names only to avoid confusion and intends no disrespect.

[2] The Minute Order also mentions the parties agreeing to further meet and confer regarding Form Interrogatory 17.1, but that interrogatory is not mentioned in any of Plaintiff's separate statements. (See Minute Order (6/16/26); see generally, Separate Statements.)